



U.S. Department
of Transportation

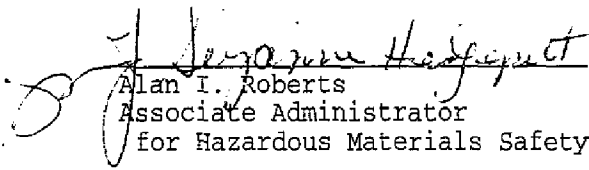
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9222 (PTE)
THIRD REVISION May 1, 1986

In accordance with 49 CFR 107.111 of the Department of Transportation (DOT) Hazardous Materials Regulations the party(ies) listed below is granted the status of party to DOT-E 9222. The expiration date of the exemption for the party(ies) is March 31, 1997.

This party status applies to the party(ies) listed below based on the application(s) submitted in accordance with 49 CFR 107.111 and the public proceeding thereon. All terms of the exemption remain unchanged. This authorization forms part of the exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

APR 28 1995

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Clean Harbors Environmental Services, Inc.
Quincy, MA

March 17, 1995

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



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DOT-E 9222
(THIRD REVISION)

1. Seaboard Chemical Corp., (SCC), Jamestown, North Carolina, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer or transport packages prescribed herein of a flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of non-DOT specification metal containers, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Caldwell Systems, Inc., Lenoir, NC - PTE-1
Willms Trucking Company, Inc., Charleston Heights, SC - PTE-2
Bryson Industrial Services, Inc., Lexington, SC - PTE-3

2. **BASIS.** This exemption is based on SCC's application dated April 16, 1984, submitted in accordance with 49 CFR 107.105, and the public proceeding thereon. The granting of party status is based on the following applications submitted in accordance with 49 CFR 107.105 or 107.113.

Caldwell Systems, Inc.'s applications dated May 9, 1984 and January 15, 1986.
Willms Trucking Co., Inc.'s application dated March 14, 1984 and April 29, 1985.
Bryson Industrial Services, Inc.'s application dated October 22, 1984 and February 5, 1985.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Solid or sludge material, classed as a flammable solid.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** Specific commodity name or generic description, as appropriate.

5. **REGULATION AFFECTED.** 49 CFR 173.154.

6. **MODE OF TRANSPORTATION AUTHORIZED.** Motor vehicle.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification steel container of approximately 5,000 gallon capacity, with gasketed, closed, metal top, having sides and bottom 1/4" thick. Tank is of the roll-on, roll-off type, securely bolted to truck chassis during transportation.

8. **SPECIAL PROVISIONS.**

a. These flammable solids must be certified in writing to be solid material in accordance with ASTM D-4359-84, "Standard Test Method for Determining Whether a Material is a Liquid or Solid." These flammable solids must be certified in writing to not contain any free liquids as determined by "Test Methods for Evaluating Solid Waste, Physical/Chemical Methods," EPA Publication SW-846, Update II.

b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption. The written certification required in paragraph (a) above must be carried along with the exemption.

c. Shipments are to originate at hazardous waste sites and be destined for disposal facilities.

d. Each container must be properly placarded, and display the appropriate identification number in accordance with 49 CFR 172.332 and 172.504.

e. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire or accident.

f. Each container must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 9222".

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. June 1, 1986.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

MAY 1 1986

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA